

All facilities that produce, prepare or store dairy products for export must be registered with us. This includes:

- freight forwarders
- manufacturers
- processors
- producers
- storage facilities
- suppliers of Australian dairy ingredients
- any establishment where the goods are stored or loaded for export.

This excludes the wharf and airport terminal.

If you operate an export registered establishment, you must:

- understand [Australian export laws](#)
- comply with your approved arrangement
- issue all required documentation
- meet importing country requirements
- meet domestic licensing requirements.

Export facilitator service

Before you apply to become export registered, we strongly recommend that you engage with our [export facilitator service](#). This is a free service dedicated to providing one-on-one assistance to dairy manufacturers interested in pursuing exports. Our export facilitator will work with you to ensure that you have the knowledge you need for more a streamlined registration experience. Once you are registered, our export facilitator can provide ongoing support to help you explore new export opportunities.

Register

Before you can register, you must be approved for domestic purposes.

To register for export:

- document the [approved arrangement](#) you will operate under
- submit an [application to register an export establishment](#)
- pay all [fees and charges](#).

The department will:

- check all staff listed in your application
- check for any outstanding debt to the Commonwealth owed by the establishment

- conduct an audit of your establishment to confirm details and effective implementation of your approved arrangement
- approve your application, if you have met all requirements.

To export your own product (rather than sell to someone else to export), you must also [register as an exporter](#).

To assist you on your journey to become export registered, we encourage you to take a look at the information contained in the [Dairy exporter welcome pack](#).

For those wanting to better understand export requirements and obtaining Dairy Export registration you can access the Dairy Export Registration Manual ([DERM](#)). The DERM provides a deep dive into each element of an [approved arrangement](#) to help manufacturers and exporters to better understand the requirements and obligations for becoming export registered and meeting export and importing country requirements.

Approved arrangement

You must document your food safety management system. Once we approve it, it becomes an [approved arrangement \(AA\)](#). Your AA must detail how you will meet all requirements.

This includes:

- your hazard analysis critical control point (HACCP) plan
- food safety monitoring, controls and corrective action
- hygiene and structural standards
- staff training, knowledge and skills
- product traceability, protection from contamination and safe handling of goods
- importing country requirements
- effective internal verification and management review.

All establishments must operate under an AA to export dairy products.

We will review your AA as part of:

- your application to register as an establishment
- ongoing audits.

New registrations

When you apply to register as an export establishment, we will conduct an onsite audit. We will check all the systems documented in your AA. Our [export facilitator](#) can provide advice to help you prepare for the audit and understand what will be involved, however they cannot assess your AA or advise if it will be compliant at audit. This is the role of the auditor.

If the auditor finds you non-compliant, you must:

- correct any problems found
- track effectiveness of corrective action
- take steps to ensure the problem does not recur.

We may conduct several audits before approving your application.

Ongoing audits

The department [regularly audit registered establishments](#). This is every 6 months for manufacturers and annually for storage establishments. We check compliance with your AA, export legislation and importing country requirements.

Frequency of audits may vary based on:

- the type of establishment
- your history of compliance with your AA
- investigations or complaints.

Consideration periods

The Export Control (Milk and Milk Products) Rules 2021 detail consideration periods for a new application or variation applications:

New application

- Registered establishment - 120 days
- Approved arrangement - 120 days

Application to vary

- Registered establishment - 120 days
- Approved arrangement - 120 days

The consideration period commences on the day following receipt of a completed application. The department may request more information from you as the applicant or request a site visit. The department must specify in writing a timeframe within which you must supply this information.

During the period that you are compiling the additional information or notifying of a suitable time for a site visit, the consideration period will be extended. This ensures the department has sufficient time to consider applications and provides certainty on timeframes for decisions on those applications.

The consideration period will be extended by the number of days specified in the 'request for more information', starting on the day the request was made and ending either:

- on receipt of the requested information OR

- when the deadline for the additional information request has passed.

If a decision has not been made prior to the consideration period for an application expiring, the application will be deemed to be refused. You will be notified of this writing.

Documents and certificates

You are responsible for generating documents that declare export eligibility.

Importing countries may require certain documents to assure that your goods meet export conditions.

Declaration of compliance

Manufacturers of dairy products for export are responsible for making a [declaration of compliance](#).

The declaration confirms the goods are eligible for export, specifically that the product:

- is fit for human consumption
- meets all requirements under the [Export Control \(Milk and Milk Products\) Rules 2021](#)
- complies with importing country requirements.

Each shipment must have a declaration of compliance. The declaration must assure that all products in the shipment comply.

Transfer declaration

You must make a [transfer declaration](#) when you:

- receive dairy goods into your establishment
- dispatch dairy goods from your establishment to another.

This does not apply if you are sending products straight to a wharf or airport.

The declaration must identify the specific goods and state that the product has been stored in accordance with:

- the [Export Control \(Milk and Milk Products\) Rules 2021](#)
- importing country requirements.

Products must only be transferred to registered establishments to be eligible for export.

Renewals and deregistration

We will renew your registration at the start of each financial year. We will send you a notification before renewing your registration.

If you decide to deregister your establishment you must write to us before 1 July.

A person listed in management and control of your establishment must sign your request. Send it to exportestablishmentregistration@aff.gov.au

To register again, you must follow all the steps for a new registration of an establishment.

If you owe us money, we cannot re-register you until you pay all debts in full.

Exemptions from export legislation

You can apply for an exemption from parts of the [Export Control \(Milk and Milk Products\) Rules 2021](#).

To apply:

- check that your export activity is eligible
- complete an [application for exemption](#)
- get the form signed by a person listed in management and control of your establishment
- send your completed, signed form to [Dairy eggs fish](#)

Submit your application at least 10 working days before your proposed date of export.

Eligibility

We only grant exemptions for products under certain circumstances.

Commercial samples

If they do not exceed:

- 50 litres (in liquid form)
- 60 kilograms (in solid or other form)

Exceptional circumstances

Circumstances that arise in:

- the product
- preparation of the product
- the act of exporting the products.

These requests will be considered where the usual application of export legislation cannot be applied.

For example, a non-registered establishment sending prescribed goods for humanitarian aid purposes.

Experimental purposes

May involve:

- a test, trial or a tentative procedure to discover something unknown or testing a principle or theory.

For example, an establishment sending product for further processing in another country using equipment or testing not available in Australia.

Special circumstances

Circumstances that arise in:

- the product
- preparation of the product
- the act of exporting the products.

These requests can be considered where the usual application of export legislation cannot be applied.

For example, establishment A was processing a product and has labels printed with their details on them. Establishment A is now going to process this product at establishment B. They want to use the labels they have already printed so they are not at a financial loss (both establishments are registered).

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/dairy/registered-establishment>